

OREGON STATE HOSPITAL

POLICY

SECTION 7: Patient Rights

POLICY: 7.003

SUBJECT: Photographing or Recording of Patients

POINT PERSON: Strategic Communications Officer

APPROVED: Sara Walker, M.D.

DATE: NOVEMBER 15, 2024



Interim Superintendent

SELECT ONE: ☐ New policy

☒ Minor/technical revision of existing policy

☐ Reaffirmation of existing policy

☐ Major revision of existing policy

I. PURPOSE AND APPLICABILITY

- A. This policy establishes Oregon State Hospital (OSH) procedures for interviewing, photographing, and/or audio/visual recording of OSH patients in connection with marketing, public relations, social media and/or to share with family and friends.
- B. This policy applies to all staff who may interview, photograph, and/or record OSH patients for external use, which may include OSH or Oregon Health Authority (OHA) owned marketing, public relations, social media use and/or to share with family and friends.

II. POLICY

- A. OSH protects the confidentiality of its patients as required by federal and state statutes, rules, and regulations. This confidentiality protection extends to recordings of patients as defined in this policy.
- B. Neither staff, patients, nor visitors to OSH may take photographs, and/or audio/visual recordings of patients unless allowed for specific reasons stated in this policy.
- C. Photographs, and/or audio/visual recordings of a patient require written consent of the patient or guardian with exceptions indicated in this policy.
- D. Consent must be obtained by the patient or guardian completing and signing an "Authorization and Consent for Use of Information/Photographs/Audio and Visual" form (OSH 75068).
 - 1. A completed form must be signed by the patient or guardian before any photographing, recording or information sharing begins.

2. The form must clearly describe the type of media format, how it will be used, and who is authorized to use it.
3. If the information, photograph and/or audio/visual recording is for OSH use, the department storing it must keep a copy of the consent form in the same file where the product is stored.

E. Patient Consent is not required in the following situations:

1. Video monitoring of buildings, areas within buildings, grounds, and patient-care areas for purposes of safety and security.
2. Photographs taken by staff to identify a patient for the patient's electronic health record, medical record, medication record, or patient identification badge.
3. Recordings by a person who is not an OSH staff member at a public event or public space outside of OSH buildings.
4. Situations in which a patient chooses to self-identify as a patient of OSH and contacts the media or other entity directly without an OSH or OHA intermediary.
5. Information, photographs and/or audio/video recordings where the patient is not identifiable (e.g., generalized patient information or comments, patients are too far away in the background to be recognized or their faces cannot be seen and there are no other easily recognizable features, such as tattoos).
6. For internal clinical assessment or internal therapeutic use, meaning that it will not be shared outside of OSH or beyond providers providing continuity of care.
7. Recordings of forensic evaluations for judicial purposes.
 - a. A patient must be advised of this recording and confidentiality limitations at the start of the evaluation.
 - b. Digital video recordings of evaluations may only be released in response to a court order unless the recording is made by the defense attorney.
7. Recordings when circumstances are applicable to federal or state laws.

F. A visitor, by approval of the patient's program director, may have a photo taken with the patient during visitation if the patient has consented.

1. The visitor must obtain this approval prior to visitation.
2. The PD must complete the "Authorization and Consent for Use of Information/Photographs/Audio and Visual" form (OSH 75068).
3. The unit must bring the signed consent form for patients who have consented to having their photo taken at visitation. Copies of consent forms may be used for patients who have elected to have a standing consent form.
4. The photo must be taken with OSH equipment and printed for the visitor and/or patient, there is a one photo per person limit.

5. Security staff must delete the photo after it is delivered to the visitor and/or patient.
- G. Any photographing or recording must comply with the following guidelines.
 1. Patient names may not be visible in the background of any photograph or recordings.
 2. A separate consent form must be obtained for each identifiable patient.
- I. Individuals, including visitors and staff, who violate or attempt to violate this policy may be subject to sanctions under state and federal laws.
- J. If a patient violates this policy, the recording device will be confiscated under the provisions of Oregon Administrative Rule 309-108-0010. The patient may also be subject to sanctions under state and federal laws.
- K. OSH follows all applicable regulations, including federal and state statutes and rules; Oregon Department of Administrative Services (DAS), Shared Services, and OHA policies; and relevant accreditation standards. Such regulations supersede the provisions of this policy unless this policy is more restrictive.
- L. Staff who fail to comply with this policy or related policy attachments or protocols may be subject to disciplinary action, up to and including dismissal.

III. DEFINITIONS

- A. "Staff" includes employees, volunteers, trainees, interns, contractors, vendors, and other state employees assigned to work at OSH.
- B. "Recording devices" include cameras, cell phones, video cameras, hand-held games, tape recorders, or any device that has the capability to record or store audio information, visual images, or both.
- C. "Recording" means any image or audio recording taken of a patient with an electronic or mechanical recording device. A recording includes but is not limited to a visual image, audio information, or video recording.

IV. RELATED OSH POLICIES AND PROTOCOLS

8.044 Contraband and prohibited items

8.037 Patient personal property and valuables: Handling and storage

7.005 Patient rights

6.060 Photographs for patient identification

8.001 Video surveillance

8.026 Visitors to patients

Authorization and consent for use of information/photographs/audio and visual, OSH-75068 [Medical record form].

IV. REFERENCES

42 CFR § 482.13(c)1.

Joint Commission Resources, Inc. (2024) *Comprehensive accreditation manual for hospitals*, RI.01.03.01. Author. Oakbrook Terrace, IL: Author.

Shared Services. *Accessing individual records*, ODHS/OHA-100-003. Author.

Shared Services. *HIPAA: Amending Individual Records*, ODHS/OHA-100-006. Author.

Shared Services. *Privacy Policy*, ODHS/OHA-100-001. Author.

Shared Services. *HIPAA: Notice of Privacy Practices Policy*, ODHA/OHA-100-002. Author.